

TENTATIVE RULING

LVNV Funding LLC vs. Ryan Wisnoski (25CV003663)

Defendant Ryan Wisnoski's Motion to Quash Service of Summons

Defendant Ryan Wisnoski moves to quash service of summons on him on the basis that the court lacks personal jurisdiction over him. No opposition has been filed.

The motion is **DENIED**.

The motion is untimely. A defendant must file any motion to quash service of summons on or before the last day on which the defendant must plead, i.e., 30 days after service of the complaint, unless the time is extended by stipulation or by a judge's order for good cause. (Cal. Code Civ. Proc. § 418.10(a)(1).) This case was served more than a year ago on July 24, 2025, and there has been no stipulation or order extending defendant's time to respond. This motion was not filed until August 4, 2026. Accordingly, the motion is denied as untimely.

Additionally, the defendant failed to serve the motion in accordance with the requirements of California Code of Civil Procedure section 1005(b). The motion is denied on this basis as well.

The parties are to appear at the hearing of the above motions set on August 28, 2026.